

Law and Ethics

Legal work and ethical behaviors are often entangled in a way that can be difficult to decipher. However, it's important to understand the difference between a legal judgment and an ethical decision, as the two may seem at odds with one another.

First: what is ethics? In general understanding, ethical behavior falls under a system of morality concerned with what's good for both individuals and society. It concerns how people should and shouldn't behave, and different societies and cultures have different ideas of ethical behavior.

In contrast, the law is a system of rules and guidelines that are meant to be separated from ethics and morality and are enforced through social institutions like courts and law enforcement. In general terms, the law affords punishment through fines, community service, jail time, etc. when one breaks the rules. However, when one breaks an ethical rule, enforcement is more often public shame or the loss of personal relationships rather than money or time.

In a perfect world, legal judgment and ethical judgment would be seen as wholly separate, with individuals keeping their moral bias out of the legal system. In our current world, however, we see an intermingling of law and ethics; laws are made based on religious ethics, for example, or judges hand down lenient sentences based on their personal view of morality. This can pose issues when a situation is clearly harmful and illegal, despite the personal feelings and opinions of the judge.

However, having a society that attempts to live ethically can also have positive results on legal judgments, as a society that is aligned in their belief of what is ethically and morally right will tend to agree on what is legally right. This means that most citizens will be "law-abiding," obeying both the legal system and the ethical — or moral — one.

What does this mean for us? As business owners, lawyers, CPAs, or individuals? When navigating the business of business, how do we distinguish between what is ethical and what is legal? Do they always align, or are there differences that we have to be aware of to protect ourselves and our clients from harm? Every day, you make countless ethical decisions. But what do you do when faced with an ethical dilemma?

In business, ethics and legality are often even more intertwined than they are for the average person. An ethical dilemma could lead to legal repercussions for yourself, your business, the employee who caused the issue, and even potentially your client. It's your job to understand where ethics and laws meet in your line of work, so you know how to handle a situation as it arises. Being prepared is the best way to prevent ethical issues from arising at all.

Affiliation between Law and Ethics

Fundamentally Law and ethics both serve similar purposes of guiding human conduct so as to make it conducive to civilized social existence. They enforce a sense of right and wrong.

Laws refer to the set of codified norms which are enforced by the state. They act as external obligations. On the other hand, ethics refer to the set of norms which guide our internal compass and judgments.

Both are derived from certain common sources like religion, community values, cultural context, sense of justice, etc. However, ethics can also be a result of one's own evolution, personal experiences, personal choices, etc.

While laws apply uniformly to all, ethics can vary from person to person and they change more frequently than laws.

In case of a breach of law, the state is within its right to punish. Hence, they work as a medium of retributive justice. On the other hand, ethics are not enforceable.

The relationship between laws and ethics is a complex one.

1. Many laws are representative of ethics of the time and have been shaped by what is considered ethical. Eg. The idea that everyone is equal before law is derived from the value that human are born equal.
2. At the same time, laws have shaped ethics. They have been used to counter regressive doctrines. Eg. When Sati was abolished, it was not an unethical practice and derived its legitimacy from religion. But appropriate laws eventually forced to stop the unethical practices.

3. Some actions are ethical, but illegal and some actions are legal, but unethical. Eg. lying to a friend might be unethical but its not necessarily illegal. In many countries, any speech against the government is punishable by law but its ethical for citizens to express their grievances.

From the above we can say that laws alone are not enough to promote ethical behaviour. The reasons being:

1. Laws can never be so exhaustive to cover each and every scenario possible. Hence, there will always be scope for discretion. In such scenarios, ethical behavior should come from within.
2. There are many scenarios where laws cannot exist. E.g. we cannot have strict laws to scrutinize every small act of corruption.
3. Even with laws, some unethical practices continue to exist. E.g. laws for violence against women have existed for ages. But that hasn't caused such acts to end.

It is true that if a society was ethical, then we would not require laws acting as external checks. But such is a hypothetical scenario. Laws and ethics have their own unique position. Both are equally important and go hand in hand.

December 10, 2018